

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
NELSON GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GREGORY SANTANA,

Defendants.
-----X

SUMMONS

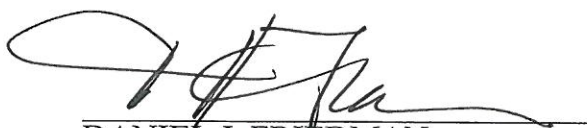
Plaintiff designates New
York County as the place of
trial.

The basis of venue is:
place of occurrence

Plaintiff resides at:
2675 Grand Concourse
Bronx, NY 10468
County of Bronx

To the above named Defendant(s): You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NEW YORK
September 5, 2014


DANIEL J. FRIEDMAN
FRIEDMAN, FRIEDMAN,
CHIARAVALLLOTI & GIANNINI
2 Rector Street, 21 Floor
New York, NY 10006
(212) 267-0380
File #: 14-1160

TO: THE CITY OF NEW YORK and
Police Officer Gregory Santana
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
NELSON GONZALEZ,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, and POLICE OFFICER
GREGORY SANTANA,

Defendants.

-----X

Plaintiff, by his attorneys, FRIEDMAN, FRIEDMAN, CHIARAVALLOTI &
GIANNINI complaining of the defendants, alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all the times hereinafter mentioned, the defendant, THE CITY OF
NEW YORK, (hereinafter CITY) was and is a municipal corporation duly organized and
existing under and by virtue of the laws of the State of New York.

2. That at all the times hereinafter mentioned, plaintiff is a resident of Bronx
County, City and State of New York.

3. That on or about the 26th day of February, 2014, at approximately 8:30-
9:00 p.m., at 148 Street at or near its intersection with Convent Avenue, in the City,
County and State of New York, while plaintiff, was walking on 148th Street at or near
its intersection with Convent Avenue, in the City, County and State of New York;
plaintiff was stopped by defendant, Police Officer GREGORY SANTANA, employed
by the New York Police Department, who then wilfully and maliciously, and without
just cause or provocation, assaulted, and manhandled the plaintiff, by grabbing, shaking
and striking him in and about his head, neck and back; then pushing him to the ground.

4. That at all the times hereinafter mentioned, defendant, POLICE OFFICER GREGORY SANTANA, was employed by defendant, CITY.

5. That at all the times hereinafter mentioned, defendant, POLICE OFFICER GREGORY SANTANA, was acting within the scope of his employment.

6. That by reason of the assault and battery as aforesaid, plaintiff sustained severe and serious personal injuries accompanied by pain and anguish, which required him to obtain hospital and medical care and treatment and to incur expense and obligation therefor, and he was prevented from attending to his usual vocation and duties, and that his injuries are permanent in nature.

7. That within ninety (90) days after the date of the occurrence herein, plaintiff duly served a notice of claim upon the Comptroller of the City of New York, containing the information required by statute, including the name and address of the claimant, the nature of the claim, the manner of the happening of the event, and the nature of the injuries and damages alleged.

8. That a 50-H Hearing was held on May 19, 2014.

9. That this action is being commenced within one year and ninety days after the cause of action herein arose and more than 30 days have elapsed since the filing of the claim herein, and the defendant, CITY; has failed and omitted to pay or adjust the said claim.

10. That by reason of the aforesaid occurrence, plaintiff has sustained damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

11. Plaintiff repeats and realleges each and every allegation herein before

contained in this complaint as if fully set forth herein at length.

12. As a consequence of the aforementioned, plaintiff's civil rights were violated.

13. The injuries sustained by plaintiff were caused wholly or in part by the willful, wanton, reckless, malicious, careless and negligent conduct of the defendants in violation of Federal, State and local laws, statutes, ordinances, rules, regulations and codes, all in disregard of the civil rights of the plaintiff.

14. At all times material to this complaint, the defendants allegedly acted under color of law, to wit, under color of statutes, ordinances, policies, customs and usages of the State of New York, County of New York, and New York City Police Dept

15. Defendants' actions, conducted either knowingly, intentionally, maliciously, and/or with reckless disregard thereby, depriving plaintiff of his civil rights.

16. Defendants' actions denied plaintiff his right to be free from cruel and unusual punishment.

17. Defendant's failure to timely furnish medical care to plaintiff constituted overt acts in furtherance of a conspiracy between said defendants to deprive plaintiff of his civil rights.

18. The defendants' acts were in direct violation of 42 U.S.C. §1985, depriving plaintiff of his civil rights secured to him by the Constitution of the United States under the provisions of his Fourth, Fifth, Eighth and Fourteenth Amendments.

19. At all times herein mentioned, defendants were acting under the color of state law.

20. Defendants subjected plaintiff to the deprivation of his civil rights knowingly, intentionally, and/or maliciously. For this reason, plaintiff is entitled to an

award of punitive damages.

21. Plaintiff demands judgment against defendants, jointly and severally, individually, and in their official capacities, for statutory damages, nominal damages, compensatory damages, punitive damages, counsel fees, costs of suit, and for such other relief, as the Court may deem equitable and just.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation heretofore contained in this complaint as if fully set forth again herein at length.

23. Upon information and belief, defendants promulgated policies and procedures, which directly led to the visitation of the Constitutional deprivations, set forth in the preceding Causes of Action of the Complaint.

24. In addition, or in the alternative, upon information and belief, the Constitutional deprivations set forth in the preceding Causes of Action of the Complaint were the result of a custom and/or usage of which these defendants had knowledge.

25. In addition or in the alternative, upon information and belief, the Constitutional deprivations set forth in the preceding Causes of Action of the Complaint were the result of a failure to act on the part of these defendants which evidenced a deliberate indifference to the Constitutional rights of the plaintiff.

26. Upon information and belief, the above named defendants have accordingly violated 42 U.S.C. §1983.

27. Upon information and belief, the above named defendants have accordingly violated 42 U.S.C. §1985(3).

28. Upon information and belief, the above named defendants have accordingly violated 42 U.S.C. §1986.

29. Plaintiff demands judgment against defendants jointly and severally for nominal damages, compensatory damages, punitive damages, attorneys' fees pursuant to 42 U.S.C. §1988 and State law, costs of suit, and any other relief as the Court may deem just and equitable.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiff repeats and realleges each and every allegation heretofore contained in this complaint as if fully set forth again herein at length.

31. Upon information and belief, defendants promulgated policies and procedures, which directly led to the visitation of the Constitutional deprivations set forth in the preceding Causes of Action of the Complaint.

32. In addition or in the alternative, upon information and belief, the Constitutional deprivations set forth in the preceding Causes of Action of the Complaint were the result of a custom or usage of which these defendants had knowledge.

33. In addition or in the alternative, upon information and belief, the Constitutional deprivations set forth in the preceding Causes of Action of the Complaint were the result of the defendants' negligent acts or a failure to act on the part of these defendants, which evidenced a deliberate indifference to the Constitutional rights of the plaintiff.

34. Upon information and belief, the above named defendants have accordingly violated 42 U.S.C. §1983.

35. Upon information and belief the above named defendants have accordingly violated 42 U.S.C. §1985.

36. Upon information and belief, the above named defendants have accordingly violated 42 U.S.C. §1986.

37. Plaintiff demands judgment against defendants jointly and severally for nominal damages, compensatory damages, punitive damages, attorneys' fees pursuant to 42 U.S.C. §1988 and §1983 and State law, costs of suit, and any other relief as the Court may deem just and equitable.

AS AND FOR A FIFTH CAUSE OF ACTION

38. Plaintiff repeats and realleges each and every allegation heretofore contained in this complaint as if fully set forth herein at length.

39. Under the doctrine of *Respondeat Superior*, defendants, CITY OF NEW YORK is responsible for the negligent acts of their defendant employees committed, in the course and scope of employment with the New York City Police Department.

40. Plaintiff demands judgment against defendants, jointly and severally, individually, and in their official capacities, for statutory damages, nominal damages, compensatory damages, punitive damages, counsel fees, costs of suit, and for such other relief as the Court deems equitable and just.

WHEREFORE, plaintiff demands judgment against the defendants herein on all causes of action, in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
September 8, 2014



DANIEL J. FRIEDMAN
FRIEDMAN, FRIEDMAN,
CHIARAVALLLOTI & GIANNINI
Attorneys for Plaintiff
2 Rector Street, 21st Floor
New York, New York 10006
(212) 267-0380
File #: 12-1056

STATE OF NEW YORK
COUNTY OF NEW YORK ss:

DANIEL J. FRIEDMAN, being an attorney admitted to practice in the Courts of this State, makes the following affirmation under the penalty of perjury:

I am a member of the firm of FRIEDMAN, FRIEDMAN, CHIARAVALLOTI & GIANNINI attorneys for the plaintiff herein and have offices at 2 Rector Street, New York, New York. I have read the foregoing Complaint and know the content hereof and the same is true except as to those matters alleged upon information and as to those matters I believe them to be true. This affirmation is made by me because plaintiff is not now within the County of New York where I have my offices.

The grounds for my belief as to all matters in the said Complaint are conferences with plaintiffs, investigation of the circumstances relating to the allegations, review of medical records and reports and documents in my file.

Dated: New York, New York
September 8, 2014



DANIEL J. FRIEDMAN

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SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER GREGORY
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Defendants.

SUMMONS and VERIFIED COMPLAINT

Friedman Friedman Chiaravalloti & Giannini
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2 Rector Street
New York, New York 10006
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